

25STCV10803 25STCV10803

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-30

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Case Number: 25STCV10803 Hearing Date: June 30, 2026 Dept: 512

HEARING DATE: Tues.,

June 30, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Pennington

v. OK Management, Inc. COMPL.

FILED: 04-11-25

CASE NUMBER: 25STCV10803 ANSWER FILED: 08-18-25

NOTICE: OK

PROCEEDINGS: MOTION

FOR LEAVE TO FILE A CROSS-COMPLAINT

MOVING PARTY: Defendant/Cross-Complainant

OK Management, Inc.

RESP. PARTY: None

MOTION FOR LEAVE TO FILE A

CROSS-COMPLAINT

(CCP §§ 426.50, 428.10-428.80)

TENTATIVE RULING:

Defendant/Cross-Complainant

OK Management, Inc.'s unopposed Motion for Leave to File Cross-Complaint

is GRANTED.

Defendant/Cross-Complainant

is to file and serve the Cross-Complaint within 10 days of this order.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC,
rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a)
OK

☒
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of June 24, 2026 ☐ Late ☒
None

REPLY: None

filed as of June 24, 2026 ☐ Late ☒
None

ANALYSIS:

I.

Background

On April 11, 2025, Plaintiff Leslie

Pennington ("Plaintiff") filed the instant action against Defendant OK

Management, Inc. ("Defendant") and Does 1-100, alleging causes of action for
Negligence; Breach of Implied Warranty of Habitability; Violation of Civil Code
section 1942.4; Harassment in Violation of Los Angeles Anti-Harassment
Ordinance, LAMC Section 45.30, et seq.; and Violation of Civil Code section
1954(a)(2).

On August 18, 2025, Defendant,

proceeding pro se, filed an Answer.

On June 2, 2026, Defendant, represented by counsel, filed the instant Motion for Leave to File Cross-Complaint (the “Motion”).

On June 3, 2026, Defendant filed a Notice of Errata in support of the Motion.

No Opposition was filed.

II.

Procedural Issues

As an initial matter, the Court notes the Notice of Motion incorrectly states that the Motion would be heard at “312 North Spring Street, Los Angeles, CA 90012.” (Notice of Motion.) This is the address for the Spring Street Courthouse, not the Stanley Mosk Courthouse in which this Department is located.

However, the Notice of Motion provides the correct date, time, department number, and judicial officer for the instant Motion hearing. Based thereon, the Court finds the Notice of Motion is substantially satisfactory and proceeds to address the unopposed Motion on the merits.

III.

Legal Standard

Code of Civil Procedure section 428.50 provides:

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(Code Civ. Proc., § 428.50.)

A “party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” (Code Civ. Proc., § 426.50, emphasis added.)

“The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99 (Silver Organizations).) “ ‘Bad faith,’ is defined as “[t]he opposite of ‘good faith,’ ” generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake . . . , but by some interested or sinister motive[.] . . . not simply bad judgment or negligence, but rather . . . the conscious doing of a wrong because of dishonest purpose or moral obliquity; . . . it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.]” [Citations.]’ [Citation.] ” (Id., at p. 100.)

A cross-complaint is compulsory if it is transactionally related to the subject matter of the complaint. (Code Civ. Proc., § 426.10.) “To be considered a compulsory cross-complaint, a related cause of action must have existed at the time of the service of [the] answer to

[the] complaint.” (Crocker National Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.) The late filing of a motion for leave to file a compulsory cross-complaint “absent some evidence of bad faith is insufficient evidence to support denial of the motion.” (Silver Organizations, supra, 217 Cal.App.3d at p. 101.) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker, supra, 221 Cal.App.3d at p. 864.)

IV.

Discussion

Defendant seeks leave of court to file a compulsory Cross-Complaint to assert related causes of action against Plaintiff as “Defendant was self-represented in this action at the outset and filed its Answer to the Cross-Complaint without representation of appointed counsel. Defendant, with the assistance of counsel, has since understood that it has viable claims against Plaintiff and seeks to prosecute them within this pending action.” (Motion, p. 3, Notice of Errata, Exh. A.) In a Notice of Errata filed in support of the Motion, Defendant attaches a proposed Cross-Complaint containing causes of action for Breach of Contract, Negligence, and Waste against Plaintiff. (Motion, Notice of Errata, Exh. B.)

The Court finds Defendant’s proposed Cross-Complaint contains compulsory claims. (Motion, Notice of Errata, Exh. B.) The Cross-Complaint’s causes of action arise out of the same “transaction, occurrence, or series of transactions or occurrences” as the causes of action in Plaintiff’s Complaint – specifically, Plaintiff’s tenancy at Defendant’s property. (Motion, p. 6, Notice of Errata, Exh. B; Compl.; Code Civ. Pro., § 426.10; Crocker, supra, 221 Cal.App.3d at p. 864.)

As the Motion is timely and does not appear to be made in bad faith, Defendant’s Motion is GRANTED. (See Code Civ. Proc., § 428.50; Silver Organizations Ltd., supra, 217 Cal.App.3d at pp. 98-99; Crocker, supra, 221 Cal.App.3d at p. 864.)

V.

Conclusion & Order

For

the foregoing reasons, Defendant/Cross-Complainant OK Management, Inc.'s unopposed Motion for Leave to File Cross-Complaint is GRANTED.

Defendant/Cross-Complainant
is to file and serve the Cross-Complaint within 10 days of this order.

Moving party is ordered to give notice.